

(Name of court)

**Form 34A: Affidavit of
Parentage,
sworn/affirmed**

at

Court office address

Applicant(s) (If the applicant is unknown at the time this affidavit is sworn/affirmed or if the applicant's name is not to be disclosed to the person swearing/affirming this affidavit, leave this box blank)

Full legal name & address for service — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

Lawyer's name & address — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

Respondent(s) (If there is a respondent, the first letter of the respondent's surname may be used)

Full legal name & address for service — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

Lawyer's name & address — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

My name is (full legal name)

I live in (municipality & province)

and I swear/affirm that the following is true:

- The child's full legal name is: (Give full legal name, date of birth, sex and birth registration number if known of person to be adopted. If this person was placed for adoption by a licensee or children's aid society, you may use an initial for the surname.)

Full legal name

Date of birth

Sex

Birth registration number

- I am (State your relationship to the child.)

- The child was born on (date), in (municipality, province, etc.)

- The child's birth was registered or registration has been requested with the vital statistics register of (province) under the following name(s):

Check applicable box(es).

- (Name of person familiar with legal meaning of "parent") has reviewed with me those categories of persons who qualify as "parents" for the purposes of the *Child, Youth and Family Services Act, 2017* and whose consents have to be obtained or dispensed with before the child can be adopted.

Check off all boxes below that apply to your situation. Note that "birth parent" means the person who gives birth to the child.

- The review mentioned in paragraph 5 included an examination of the following checklist:

(a) Within the 300-day period before the child's birth,

- ☐ the birth parent's spouse (spouse's full legal name) died.
- ☐ the birth parent got a divorce or annulment from (spouse's full legal name)
- ☐ the birth parent was living in conjugal relationship outside marriage with (person's full legal name)

that lasted for a period of (State duration of relationship.)

and came to an end.

- ☐ the birth parent was not living in a conjugal relationship of some permanence outside of marriage with anyone.

(b) At the time of the child's birth, the birth parent was

- ☐ not married.
- ☐ married to (*spouse's full legal name*) _____
- ☐ not living in a conjugal relationship outside marriage.
- ☐ living in a conjugal relationship outside marriage with (*spouse's full legal name*) _____

_____ for a period of (*state duration of relationship*) _____

(c) Where the child was conceived through assisted reproduction, at the time of the child's conception, the child's birth parent

- ☐ was not married.
- ☐ was married to (*spouse's full legal name*) _____
- ☐ was living in a conjugal relationship outside marriage with (*spouse's full legal name*) _____

_____ for a period of (*state duration of relationship*) _____

☐ (*not applicable*)

(d) Under Ontario's *Vital Statistics Act* or under similar legislation in another province or territory in Canada,

- ☐ no person, to the best of my knowledge and information,
- ☐ (*person's full legal name*) _____

has certified the child's birth as the child's parent.

(e) As of today's date,

- ☐ no other person has, to the best of my knowledge and information, been recognized by a court
- ☐ (*person's full legal name*) _____ has been recognized
by (*name of court*) _____

to be a parent to the child.

(f) In the 12 months before the child was placed for adoption,

- ☐ no person
- ☐ (*person's full legal name*) _____

has demonstrated a settled intention to treat the child as a child of his or her own family.

(g) In the 12 months before the child was placed for adoption,

- ☐ no person has acknowledged to me or, to the best of my knowledge and information, to any other person or agency
- ☐ (*person's full legal name*) _____ acknowledged
- ☐ to me
- ☐ to (*name of other person or agency*) _____

parentage of the child and provided for the child's support.

(h) Prior to January 1, 2017, a statutory declaration

☐ has, to the best of my knowledge and information, never been filed by any person,

☐ was filed by (person's full legal name) _____

with the office of the Registrar General acknowledging parentage of the child.

(i) There is ☐ no written agreement or court order requiring any person,

☐ a written agreement made on (date) _____, at
(municipality, etc.) _____,

requiring (person's full legal name) _____,

☐ an order of (name of court) _____, made
on (date) _____, at

(municipality, etc.) _____,

requiring (person's full legal name) _____

to provide for the child's support.

(j) There is ☐ no written agreement or court order giving any person,

☐ a written agreement made on (date) _____, at
(municipality, etc.) _____,

giving (person's full legal name) _____,

☐ an order of (name of court) _____, made
on (date) _____, at

(municipality, etc.) _____,

giving (person's full legal name) _____

custody of (including decision-making responsibility for) or access to (including parenting time or contact with) the child.

7. The review in paragraphs 5 and 6 indicates that, other than the person making this affidavit,

☐ no other person

☐ (full legal name of person(s)) _____

meets/meet the definition of "parent" whose consent would therefore be required before the child could be adopted.

Sworn/Affirmed before me at _____
municipality

in _____
province, state or country

on _____
date

Commissioner for taking affidavits
(Type or print name below if signature is
illegible.)

Signature

(This form is to be signed in front of a
lawyer, justice of the peace, notary
public or commissioner for taking
affidavits.)